

KOSTIANTYN MARS
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Austin, TX 78727
Phone Number: 202.505.9444
Email: legal@marsjustice.io

KOSTIANTYN MARS, PRO SE

**UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF TEXAS
AUSTIN DIVISION**

KOSTIANTYN MARS

Plaintiff,

vs.

STATE OF CALIFORNIA; GAVIN NEWSOM,
in his official capacity as Governor;

BETH MCGOWEN and JULIE EMEDE,
in their official capacities as Presiding Judges;

SANTA CLARA COUNTY SUPERIOR COURT;

HANNA MARS;

and all related officials,
judges, and agents acting under color of law,

Defendants.

) Case No. :

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CONSOLIDATED EVIDENCE

BINDER - EXHIBIT A

VOLUME 2 of 10

IN SUPPORT OF

NOTICE OF REMOVAL,

CIVIL RICO COMPLAINT,

EMERGENCY MOTION FOR TRO,

MOTION TO DISMISS CRIMINAL

CASE B2402220 WITH PREJUDICE

DATE:

TIME:

DEPT:

**CONSOLIDATED EVIDENCE BINDER - EXHIBIT A - VOLUME 2 of 10
(SET 2 PART 1 - JUDICIAL DISQUALIFICATIONS)**

In Support of:

- **Notice of Removal** (28 U.S.C. §§ 1331, 1343, 1441, 1443, 1455)
- **Civil RICO Complaint** (18 U.S.C. §§ 1961–1968)
- **Emergency Motion for Temporary Restraining Order**
- **Motion to Dismiss Criminal Case B2402220 With Prejudice** (Fed. R. Civ. P. 65(b))

Related State Court Matters Removed:

- **B2402220** (Criminal Case, Santa Clara County Superior Court)
- **22DV000779** (Domestic Violence Case, Santa Clara County Superior Court)
- **22FL003144** (Family Law / Divorce / Custody Case)
- **24CV441024** (Name Change Case, Santa Clara County Superior Court)
- **200000002626999** (DCSS Wage Garnishment and Arrears Enforcement Case)

Respectfully submitted,

DATED: June 10, 2026

KOSTIANTYN MARS

Pro Se

1 **TABLE OF CONTENTS (EXHIBITS IN THIS VOLUME)**

2 **SET 2 PART 1 - JUDICIAL DISQUALIFICATIONS AND VOID ORDERS**

3	4	5	6
	Exhibit	Description	Page
5	<u>A-7</u>	Statement of Disqualification - Judge Stephen Lowney (Feb. 20, 2024)	3
6	<u>A-8</u>	Statement of Disqualification - Judge Andrea Flint (Nov. 13, 2023)	4
7	<u>A-9</u>	Statement of Disqualification - Judge James Towery (Dec. 06, 2022)	5
8	<u>A-10</u>	Statement of Disqualification - Judge James Towery (Jan. 12, 2017)	6
9	<u>A-11</u>	PAJAR Confirmation of Concealed Disqualifications of All Three Judges by Presiding Judge Beth McGowen	7
10			
11	<u>A-12</u>	Request for Change of Venue	10
12	<u>A-13</u>	Request for Nullification of Void Orders Issued by Disqualified Judges	11
13			
14			
15			
16			
17			
18			
19			
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27			
28			

EXHIBIT A-7

STATEMENT OF DISQUALIFICATION - JUDGE STEPHEN LOWNEY

(FEBRUARY 20, 2024)

Description: Statement of Disqualification filed against Judge Stephen Lowney, Feb 20, 2024

Date: February 20, 2024

ACCESS FULL DOCUMENT

Full PDF: <https://marsjustice.io/federal-removal/lowney-disqualification-2024-02-20.pdf>

Scan QR Code for instant download of the complete document:



1	KOSTIANTYN MARS		
2	PO BOX 8081		
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4	(408) 518-0088		
5	CONSTANTINE.MARS@GMAIL.COM		
6	PER SE		
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(ENDORSED)
FILED
FEB 20 2024
Clerk of the Court
Superior Court of CA County of Santa Clara
BY J. RARAS DEPUTY

SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SANTA CLARA

KOSTIANTYN MARS
vs.
HANNA MARS,

Petitioner,
Respondent.

Case No.: 22FL003144
[Honorable Beth McGowen,
Presiding Judge of Superior Court of California]
[Dept. 72 - Honorable Brooke A. Blecher,
Supervising Judge of Superior Court of California]
[Dept. 79 - Hon. Stephen P. Lowney,
Judge to be served the Disqualification Statement]

**NOTICE OF PETITIONER'S VERIFIED
STATEMENT OF DISQUALIFICATION OF
SANTA CLARA SUPERIOR COURT JUDGE
STEPHEN P. LOWNEY
FOR IMPERMISSIBLE CONFLICT OF
INTEREST,
REQUEST FOR HIS DISQUALIFICATION,
STAY ON ALL HIS ORDERS UNTIL FINAL
JUDGMENT,
AND NULLIFICATION OF ALL HIS ORDERS
RETROACTIVELY BACK TO 10/31/2022**

[Statement of Disqualification and Memorandum of
Points and Authorities filed concurrently]

(Code Civ. Proc. 170.1(a)(6)A(iii);
170.1(a)(3)A; 170.3)

- 1 -
NOTICE OF DISQUALIFICATION STATEMENT RE: HON. STEPHEN P. LOWNEY
DISSOLUTION OF FAMILY MARS
CASE NO.: 22FL003144

EXHIBIT A-8

STATEMENT OF DISQUALIFICATION - JUDGE ANDREA FLINT (NOVEMBER 13, 2023)

Description: Statement of Disqualification filed against Judge Andrea Flint on Nov. 13, 2023.

Date: November 13, 2023

ACCESS FULL DOCUMENT

Full PDF: <https://marsjustice.io/federal-removal/flint-disqualification-2023-11-13.pdf>

Scan QR Code for instant download of the complete document:



1	KOSTIANTYN MARS	
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FILED
NOV 13 2023
Clerk of the Court
Superior Court of California, County of Santa Clara
BY M. JOHNSON DEPUTY

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SANTA CLARA**

KOSTIANTYN MARS
Petitioner,
vs.
HANNA MARS,
Respondent.

Case No.: 22FL003144
[Hon. Beth McGowen,
Presiding Judge of Superior Court of California
Dept. 79 – Hon. Andrea Flint,
Judge to be served the Disqualification
Statement]

**NOTICE OF PETITIONER'S VERIFIED
STATEMENT OF DISQUALIFICATION
OF SANTA CLARA SUPERIOR COURT
JUDGE ANDREA E. FLINT
FOR IMPERMISSIBLE CONFLICT OF
INTEREST;
REQUEST FOR HER
DISQUALIFICATION AND
RETROACTIVE NULLIFICATION OF
HER ORDERS**

[Statement of Disqualification and
Memorandum of Points and Authorities filed
concurrently]

(Code Civ. Proc. 170.1(a)(6)A(iii);
170.1(a)(3)A; 170.3)

- 1 -
NOTICE OF DISQUALIFICATION STATEMENT RE: HON. ANDREA E. FLINT
DISSOLUTION OF FAMILY MARS
CASE NO.: 22FL003144

EXHIBIT A-9

STATEMENT OF DISQUALIFICATION - JUDGE JAMES TOWERY

(DECEMBER 06, 2022)

Description: Statement of Disqualification against Judge James Towery on Dec. 06, 2022.

Date: December 06, 2022

ACCESS FULL DOCUMENT

Full PDF: <https://marsjustice.io/federal-removal/towery-disqualification-2022-12-06.pdf>

Scan QR Code for instant download of the complete document:



PATRICK J. EVANS, SBN 110535 LAW OFFICE OF PATRICK J. EVANS 16897 ALGONQUIN ST., SUITE F HUNTINGTON BEACH, CALIFORNIA 92649 Tel: 714) 594-5722; Fax: 714) 840-6861 pevans@pevanslawoffice.com Attorney for Respondent, Susan Bassi		FILED DEC 06 2022 Clara Jackson, Clerk of Court County of Santa Clara BY CARLA JACKSON DEPUTY
SUPERIOR COURT OF CALIFORNIA		
COUNTY OF SANTA CLARA – FAMILY JUSTICE CENTER		
ROBERT BASSI, Petitioner,	CASE NO. 6-12-FL-009065 [Dept. 79 - Hon. Andrea Flint, Judge Presiding, APJ in case] [Dept. 79 - Hon. James Towery, Judge to be served the Disqualification Statement]	
v.		
SUSAN BASSI, Respondent.	NOTICE OF RESPONDENT SUSAN BASSI'S VERIFIED STATEMENT OF DISQUALIFICATION OF SANTA CLARA SUPERIOR COURT JUDGE JAMES E. TOWERY; REQUEST FOR HIS DISQUALIFICATION AND NULLIFICATION OF HIS ORDERS [Statement of Disqualification-and- Memorandum of Points and Authorities filed concurrently] (Code Civ. Proc. §§ 170.1(a)(3)(A); 170.1(a)(6)(A)(iii); §170.3(c)(1) [Dissolution Judgment entered: August 18, 2018; case on appeal, H046284]	
TO THE SANTA CLARA COUNTY SUPERIOR COURT AND PRESIDING JUDGE, HON. THEODORE ZAYNER AND RESPONDENT THROUGH COUNSEL:		
- 1 - NOTICE OF DISQUALIFICATION STATEMENT RE: JUDGE JAMES E. TOWERY		

EXHIBIT A-10

STATEMENT OF DISQUALIFICATION - JUDGE JAMES TOWERY (JANUARY 12, 2017)

Description: Statement of Disqualification against Judge James Towery on Jan. 12, 2017.

Date: January 12, 2017

ACCESS FULL DOCUMENT

Full PDF: <https://marsjustice.io/federal-removal/towery-disqualification-2017-01-12.pdf>

Scan QR Code for instant download of the complete document:



1 ROBERT J. TENNANT SBN: 36566 2 LAW OFFICES OF ROBERT J. TENNANT 3 1790 S. Winchester Blvd., Suite 6 4 Campbell, California 95008 5 Tel: (408) 866-4282 6 Fax: (408) 866-9052 7 Attorney for, SUSAN H. BASSI 8 9 10 11 12 13 14 15 16 17 18 19 20 21 22 23 24 25 26 27 28	(ENDORSED) FILED JAN 12 2017 Clerk of the Superior Court of the State of California DEPUTY	Case No.: 20126FL009065 WRITTEN VERIFIED STATEMENT OF DISQUALIFICATION [CCP §170.3(c)(1)] APJ: James E. Towery Dept.: 77
---	--	---

I, Susan H. Bassi, Respondent herein, make this Written Verified Statement of Disqualification of Judge James E. Towery on the basis that he has repeatedly engaged in conduct that disqualifies him from continuing to act as the All Purpose Judge herein, in that he has regularly demonstrated the absence of probity, fairness, honesty, uprightness and soundness of character in violation of Canon 1 of the California Code of Judicial Ethics.

Written Verified Statement of Disqualification
MARRIAGE OF BASSI
Case No. 6-12-FL-009065
Page 1 of 57

EXHIBIT A-11

PAJAR CONFIRMATION OF CONCEALED DISQUALIFICATIONS OF ALL THREE JUDGES BY PRESIDING JUDGE BETH MCGOWEN

Description: Official confirmation from PAJAR team of Judicial Council of California, confirming that disqualifications of all three judges (Flint, Lowney, Towery) were concealed from Judicial Council by Presiding Judge Beth McGowen.

Date: March 20, 2024 - August 8, 2024

ACCESS FULL DOCUMENT

Full PDF:

<https://marsjustice.io/federal-removal/pajar-confirmation-of-consealed-disqualifications.pdf>

Scan QR Code for instant download of the complete document:



Request: Status of Disqualification of Judge Stephen P. Lowney of Santa Clara Superior Court

PAJAR <PAJAR@jud.ca.gov>
To: Constantine Mars [REDACTED]

Wed, Mar 20, 2024 at 4:38 PM

Good afternoon,

Your e-mail request below has reached the "Public Access to Judicial Administrative Records" (PAJAR) team at the Judicial Council of California. The PAJAR team responds to requests to inspect "judicial administrative records" pursuant to rule 10.500 of the California Rules of Court. You can find information about rule 10.500, the process for requesting records, and the types of records available through this process at www.courts.ca.gov/publicrecords.htm.

In your e-mail below, you asked questions regarding the status of disqualification of Hon. Stephen P. Lowney of the Superior Court of Santa Clara County for your specific case.

The PAJAR team can assist by locating and providing copies of disclosable judicial administrative records if they already exist. (Please see Cal. Rules of Court, rule 10.500(e)(1).) The Judicial Council is not obligated to create new records, however, for example, by responding to written questions, which is not a function that PAJAR performs. (Please see Cal. Rules of Court, rule 10.500(e)(1)(B).)

The Judicial Council has no records with information responsive to your questions.

Sincerely,

Public Access to Judicial Administrative Records

Legal Services | Leadership Services Division

Judicial Council of California

455 Golden Gate Avenue, San Francisco, California 94102-3688

415-865-7796 | PAJAR@jud.ca.gov

[Quoted text hidden]



2024-03-18 PAJAR Request of Disqualification Status of Judge Lowney.pdf
230K

7/20/24, 11:13 AM

Gmail - Request: Status of Disqualification of Judge Andrea E. Flint of Santa Clara Superior Court



Constantine Mars [REDACTED]

Request: Status of Disqualification of Judge Andrea E. Flint of Santa Clara Superior Court

PAJAR <PAJAR@jud.ca.gov>

Wed, Mar 20, 2024 at 4:36 PM

To: Constantine Mars [REDACTED]

Good afternoon,

Your e-mail request below has reached the "Public Access to Judicial Administrative Records" (PAJAR) team at the Judicial Council of California. The PAJAR team responds to requests to inspect "judicial administrative records" pursuant to rule 10.500 of the California Rules of Court. You can find information about rule 10.500, the process for requesting records, and the types of records available through this process at www.courts.ca.gov/publicrecords.htm.

In your e-mail below, you asked questions regarding the status of disqualification of Hon. Andrea E. Flint of the Superior Court of Santa Clara County for your specific case.

The PAJAR team can assist by locating and providing copies of disclosable judicial administrative records if they already exist. (Please see Cal. Rules of Court, rule 10.500(e)(1).) The Judicial Council is not obligated to create new records, however, for example, by responding to written questions, which is not a function that PAJAR performs. (Please see Cal. Rules of Court, rule 10.500(e)(1)(B).)

The Judicial Council has no records with information responsive to your questions.

Sincerely,

Public Access to Judicial Administrative Records

Legal Services | Leadership Services Division

Judicial Council of California

455 Golden Gate Avenue, San Francisco, California 94102-3688

415-865-7796 | PAJAR@jud.ca.gov

[Quoted text hidden]



2024-03-18 PAJAR Request of Disqualification Status of judge Flint.pdf
230K

<https://mail.google.com/mail/u/2/?ik=449535d672&view=pt&search=all&permmsgid=msg-f:1794090233633695499&simpl=msg-f:1794090233633695499>

1/1



Constantine Mars [REDACTED]

PAJAR Request - Records on Disqualification of James Towery, Santa Clara County Superior Court

PAJAR <PAJAR@jud.ca.gov>

Thu, Aug 8, 2024 at 4:21 PM

To: Constantine Mars [REDACTED]

Good afternoon,

Your e-mail request below has reached the "Public Access to Judicial Administrative Records" (PAJAR) team at the Judicial Council of California. The PAJAR team responds to requests to inspect "judicial administrative records" pursuant to rule 10.500 of the California Rules of Court. You can find information about rule 10.500, the process for requesting records, and the types of records available through this process at www.courts.ca.gov/publicrecords.htm.

In the attached, you seem to be requesting the following records:

1. Any order assigning a judge to hear and determine any question of disqualification in case number 6-12-FL-009065, pending in the Superior Court of Santa Clara County, in December 2022;
2. Any written request the Judicial Council's Temporary Assigned Judges Program (TAJP) may have received from the Santa Clara court seeking the referenced assignment order; and
3. Any written record of the court's ruling on the disqualification matter and when it was filed.

For Requests 1 and 2, the Judicial Council does not have any responsive records. For Request 3, TAJF does not receive copies of rulings that assigned judges issue. The Judicial Council, therefore, would not have records providing the information requested.

Sincerely,

Public Access to Judicial Administrative Records

Legal Services | Leadership Services Division

Judicial Council of California

455 Golden Gate Avenue, San Francisco, California 94102-3688415-865-7796 | PAJAR@jud.ca.gov

[Quoted text hidden]

**PAJAR Request - James Towery.pdf**
256K

EXHIBIT A-12

REQUEST FOR CHANGE OF VENUE

Description: Official request for change of venue due to systemic corruption and repetitive concealment of disqualifications of judges involved in child trafficking, extortion and racketeering in Santa Clara County court.

Date: February 20, 2024

ACCESS FULL DOCUMENT

Full PDF: <https://marsjustice.io/federal-removal/request-for-change-of-venue-2024-02-20.pdf>

Scan QR Code for instant download of the complete document:



FL-300

PARTY WITHOUT ATTORNEY OR ATTORNEY NAME: KOSTIANTYN MARS FIRM NAME: STREET ADDRESS: PO BOX 8081 CITY: SAN JOSE TELEPHONE NO.: (408) 518-008 E-MAIL ADDRESS: CONSTANTINE.MARS@GMAIL.COM ATTORNEY FOR (name): SUPERIOR COURT OF CALIFORNIA, COUNTY OF SANTA CLARA STREET ADDRESS: 201 N FIRST STREET MAILING ADDRESS: 191 N FIRST STREET CITY AND ZIP CODE: SAN JOSE, CA 95113 BRANCH NAME: FAMILY JUSTICE CENTER		STATE BAR NUMBER: STATE: CA ZIP CODE: 95155 FAX NO.:	FOR COURT USE ONLY (ENDORSED) FILED FEB 20 2024 Clerk of the Court Superior Court of CA County of Santa Clara BY: J. RARAS DEPUTY
PETITIONER: KOSTIANTYN MARS RESPONDENT: HANNA MARS OTHER PARENT/PARTY:		CASE NUMBER: 22FL003144	
REQUEST FOR ORDER ☐ CHANGE ☐ TEMPORARY EMERGENCY ORDERS ☐ Child Custody ☐ Visitation (Parenting Time) ☐ Spousal or Partner Support ☐ Child Support ☐ Domestic Violence Order ☐ Attorney's Fees and Costs ☐ Property Control ☒ Other (specify): CHANGE OF VENUE			

NOTICE OF HEARING

1. TO (name(s)): HANNA MARS
☐ Petitioner ☒ Respondent ☐ Other Parent/Party ☐ Other (specify):

2. A COURT HEARING WILL BE HELD AS FOLLOWS:
a. Date: 02/21/2024 Time: 1:00 PM ☒ Dept.: 75 ☐ Room:
b. Address of court ☒ same as noted above ☐ other (specify):

3. **WARNING to the person served with the Request for Order:** The court may make the requested orders without you if you do not file a Responsive Declaration to Request for Order (form FL-320), serve a copy on the other parties at least nine court days before the hearing (unless the court has ordered a shorter period of time), and appear at the hearing. (See form FL-320-INFO for more information.)
(Forms FL-300-INFO and DV-400-INFO provide information about completing this form.)

COURT ORDER
(FOR COURT USE ONLY)

It is ordered that:

4. ☐ Time ☐ for service ☐ until the hearing is shortened. Service must be on or before (date):
5. ☐ A Responsive Declaration to Request for Order (form FL-320) must be served on or before (date):
6. ☐ The parties must attend an appointment for child custody mediation or child custody recommending counseling as follows (specify date, time, and location):
7. ☐ The orders in Temporary Emergency (Ex Parte) Orders (form FL-305) apply to this proceeding and must be personally served with all documents filed with this Request for Order.
8. ☐ Other (specify):

Date: _____ JUDICIAL OFFICER _____ Page 1 of 4

Form Adopted for Mandatory Use
Judicial Council of California
FL-300 (Rev. July 1, 2016)

REQUEST FOR ORDER

Family Code, §§ 2040, 2107, 6204,
6205, 6300-6308, 6350-6355,
Government Code, § 26950
Cal. Rules of Court, rule 5.52
www.courtinfo.ca.gov

EXHIBIT A-13

REQUEST FOR NULLIFICATION OF VOID ORDERS ISSUED BY DISQUALIFIED JUDGES

Description: Official request for nullification of void orders issued by disqualified judges.

Date: February 29, 2024

ACCESS FULL DOCUMENT

Full PDF:

<https://marsjustice.io/federal-removal/request-for-nullification-of-void-orders-2024-02-29.pdf>

Scan QR Code for instant download of the complete document:



PARTY WITHOUT ATTORNEY OR ATTORNEY NAME: KOSTIANTYN MARS FORM NAME: STREET ADDRESS: PO BOX 8081 CITY: SAN JOSE TELEPHONE NO.: (408) 518-0086 E-MAIL ADDRESS: CONSTANTINE.MARS@GMAIL.COM ATTORNEY FOR (name): SUPERIOR COURT OF CALIFORNIA, COUNTY OF SANTA CLARA STREET ADDRESS: 201 N FIRST STREET MAILING ADDRESS: 191 N FIRST STREET CITY AND ZIP CODE: SAN JOSE CA 95113 BRANCH NAME: FAMILY JUSTICE COURT		STATE BAR NUMBER: STATE: CA ZIP CODE: 95155 FAX NO.: FOR COURT USE ONLY ENDORSED 2024 FEB 29 P 2:01 JUDGE: M. DOMINGUEZ
PETITIONER: KOSTIANTYN MARS RESPONDENT: HANNA MARS OTHER PARENT/PARTY:		CASE NUMBER: 22FL003144
REQUEST FOR ORDER ☒ CHANGE ☐ TEMPORARY EMERGENCY ORDERS ☒ Child Custody ☒ Visitation (Parenting Time) ☒ Spousal or Partner Support ☒ Child Support ☐ Domestic Violence Order ☒ Attorney's Fees and Costs ☐ Property Control ☐ Other (specify): NULLIFY ALL ORDERS OF BRIBED JUDGES LOWNEY, FLINT, TOWERY RETROACTIVELY BACK TO 09/13/2022		

NOTICE OF HEARING

1. TO (name(s)): HANNA MARS
☐ Petitioner ☒ Respondent ☐ Other Parent/Party ☐ Other (specify):

2. A COURT HEARING WILL BE HELD AS FOLLOWS:
a. Date: 7-16-2024 Time: 1:30 pm Dept: 79 Room:
b. Address of court ☐ same as noted above ☐ other (specify):

3. **WARNING to the person served with the Request for Order:** The court may make the requested orders without you if you do not file a Responsive Declaration to Request for Order (form FL-320), serve a copy on the other parties at least nine court days before the hearing (unless the court has ordered a shorter period of time), and appear at the hearing. (See form FL-320-INFO for more information.)
(Forms FL-320-INFO and DV-400-INFO provide information about completing this form.)

COURT ORDER

It is ordered that:

4. ☐ Time ☐ for service ☐ until the hearing is shortened. Service must be on or before (date):

5. ☐ A Responsive Declaration to Request for Order (form FL-320) must be served on or before (date):

6. ☐ The parties must attend an appointment for child custody mediation or child custody recommending counseling as follows (specify date, time, and location):

7. ☐ The orders in Temporary Emergency (Ex Parte) Orders (form FL-305) apply to this proceeding and must be personally served with all documents filed with this Request for Order.

8. ☐ Other (specify) each party is ordered to complete Orientation & schedule Mediation before the hearing. Go online to www.sccourt.org (search "Orientation"). Questions? Call FCS (408) 834-6780.

BROOKE BLECH

Date: FEB 29 2024

JUDICIAL OFFICER

Page 1 of 4

Form Adopted for Mandatory Use
Judicial Council of California
FL-300 (Rev. July 1, 2018)

REQUEST FOR ORDER

Family Code, §§ 2046, 2107, 3234;
§ 228, 6320-6326, 6363-6365;
Government Code, § 26328;
Cal. Rules of Court, rule 5.82;
www.courts.ca.gov